NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- V)

C.P. (CAA)-34/ND/2022

IN THE MATTER OF SCHEME OF ARRANGEMENT:

BIKANO FOODS PRIVATE LIMITED,
A-28, Lawrence Road, Industrial Area, New Delhi -110035
.....Applicant No. 1/Transferor Company

AND

BIKANERVALA FOODS PRIVATE LIMITED,
A-28, Lawrence Road, Industrial Area, New Delhi -110035
.....Applicant No. 2/Transferee Company/Demerged Company

AND

BIKANERVALA PRIVATE LIMITED,
A-28, Lawrence Road, Industrial Area, New Delhi -110035
.....Applicant No. 3/Resulting Company

Order Delivered on: 01.04.2022

Section: 230 to 232 of the Companies Act, 2013

CORAM

MR. P. S. N. PRASAD, HON'BLE MEMBER (JUDICIAL)

MR. HEMANT KUMAR SARANGI, MEMBER (TECHNICAL)

PRESENT

For the Applicants: Adv. Arun Saxena

ORDER

PER MR. P. S. N. PRASAD, MEMBER (JUDICIAL)

This Company Petition for second motion jointly filed by the Applicant Companies under the provisions of Sections 230-232 of the Companies Act, 2013, read with Rule 15(1) of the Companies (Compromise, Arrangements, Amalgamation) Rules, 2016, for the Scheme of Arrangement (for brevity "The Scheme") is coming before us for admission, fixing a date for hearing and final disposal of the Application, as well as for a direction for publication and issuance of notices to the concerned authorities for objections, if any, to the Scheme contemplated between the Applicants, which will take effect from the Appointed Date of 01.04.2019.

2. As per the averments, the Registered offices of the Applicant Companies are located in Delhi and hence, falling within the territorial jurisdiction of this Bench.

3. From the case records, it is seen that the First Motion seeking directions for convening/dispensing the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors was filed before this Tribunal in C.A.(CAA)-85/ND/2020 under Sections 230-232 of the Companies Act, 2013 and vide order dt. 22.12.2021 read with order dt. 05.01.2022, directions were issued by this Tribunal to convene a meeting of Secured and Unsecured Creditors of the Applicant Company No. 1 and 2. This Tribunal further dispensed with the

requirement of the meeting of Equity Shareholders of all the Applicant Companies and Secured and Unsecured Creditors of Applicant Company No. 3.

4. In compliance, individual notices were sent and newspaper publications dt. 19.01.2022 were made and the meeting was convened on 19.02.2022. The, Chairperson's Report dt. 25.02.2022 and the Scrutinizer's Report dt. 22.02.2022 were filed with this Tribunal on 01.03.2022 which evidently shows that the Scheme was approved by the Secured and Unsecured Creditors of the Applicant Company No. 1 and 2 with requisite majority.

5. The prayers in this Petition by way of Second Motion are for fixing a date of hearing as well as other consequential directions in terms of the provisions of the Section 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016.

6. The Applicant Companies are hereby directed to comply with the following directions:

(i) The date of hearing of the Joint Petition for the approval of the Scheme is fixed on 30.05.2022.

(ii) Notice of the hearing shall be advertised in the newspapers namely, "Business Standard" (English, Delhi edition) and

"Business Standard" in Vernacular (Hindi, Delhi edition) not less than 10 days before the next date fixed for hearing.

(iii) *In addition to the public notice, the Applicant Companies shall serve the notice of the Petition by all modes (Email, Speed Post etc.) on the following Authorities, namely,*

- *Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs at MCA, B-2 Wing, 2nd Floor, Pt. Deen Dayal Antodaya Bhawan, CGO Complex, New Delhi-1100 03*

- *Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs at 4th Floor, IFCI Tower, 61 Nehru place, New Delhi-110019;*

- *The Official Liquidator, Ministry of Corporate Affairs, 8th Floor, Lok Nayak Bhawan, Khan Market, New Delhi-110001*

- *Income Tax Department, at DCIT (HC Cell), Lawyer's Chamber Block No.1, Room No. 428 & 429 Delhi High Court, New Delhi*

- *Such other Sectoral Regulatory Authorities who are likely to be affected by the Scheme within 7 days from the date of this order. The said authorities are directed to send their representations if any, within 30 days from the date of receipt*

of such notice as per the provisions of sub-section 5 of Section 230 of the Companies Act, 2013.

(iv) *Further, notices shall also be served to the objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexure filed therewith at least 15 days before the date fixed for hearing.*

(v) *The Applicant Companies shall, at least 7 days before the date of hearing of the Petition, file an affidavit of compliance in relation to paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulators as well as to the objectors, if any.*

(vi) *Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may be filed before the date fixed for hearing, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed there under.*

(vii) *The Applicant Companies shall comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the Companies Act, 2013, as may be applicable under the circumstances, on or before the date fixed for hearing by filing the required certificate of Company's auditor.*

(viii) *The next date of hearing of petition shall be on 30.05.2022 for the consideration of the approval of Scheme of Arrangement as contemplated between the Applicant Companies.*

7. The registry is also directed to issue notices to the authorities specified in above mentioned paragraph 4 (iii).

8. Let a copy of the order be served to the parties.

-Sd-

(HEMANT KUMAR SARANGI)
Member (T)

-Sd-

(P. S. N. PRASAD)
Member (J)